

Amit Yadav v. State of U.P. Thru. Prin. Secy. Energy U.P. Lko. And 6 Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 1 May 2025 · 2025:AHC-LKO:25053-DB · WRIT - C No. - 4154 of 2025 · **Writ disposed of; petitioner relegated to Executive Engineer under Para 6.5.**

HEADNOTE

Electricity bills — dispute — U.P. Electricity Supply Code, 2005, Para 6.5 — a consumer disputing electricity bills must raise the objection before the concerned Executive Engineer; the writ court will not examine the bills and the petition is disposed of with liberty to approach that officer.

FACTUAL SUMMARY

Amit Yadav filed a writ petition before the Lucknow Bench of the Allahabad High Court against the State of Uttar Pradesh (Energy Department) and six others, disputing electricity bills issued to him. He sought writ relief on those bills instead of first taking the billing objection to the distribution licensee's Executive Engineer. The Division Bench heard counsel on 1 May 2025. The order does not record the bill amounts, the period of supply, or the nature of the alleged error.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute before Executive Engineer

HOLDING

A dispute as to electricity bills is to be raised before the concerned Executive Engineer under Para 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner may approach that officer. The writ petition is disposed of without deciding the bills on merits. ¶ 2-3

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Electricity bills — dispute — U.P. Electricity Supply Code, 2005, Para 6.5 — a consumer disputing electricity bills must raise the objection before the concerned Executive Engineer; the writ court will not examine the bills and the petition is disposed of with liberty to approach that officer. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILLS

Left to the Executive Engineer under Para 6.5. ¶ 2-3